



EDITED BY

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The Oxford Handbook *of*
**INDIAN
POLITICS**

THE OXFORD HANDBOOK OF
INDIAN POLITICS

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ŠUMIT GANGULY

and

ESWARAN SRIDHARAN

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Šumit Ganguly dedicates this volume to the memory of Robert L. Hardgrave, Jr., dedicated scholar, trusted colleague, and loyal friend.

Eswaran Sridharan dedicates this volume to the memory of S. K. Singh, former diplomat, governor, and institution builder.

INTRODUCTION AND ACKNOWLEDGEMENTS

THIS collective effort has been in gestation for the better part of half a decade. It represents an attempt to provide as complete an overview of contemporary Indian politics as possible. While it takes into account the changes that have taken place since the 2014 and 2019 general elections, it situates these changes in the longer run-up to these developments, thereby covering both the long-term trajectories of Indian politics and important changes in the recent past and the present. To that end it deals with political institutions, processes, and outcomes, as well as theories and debates, all of which have evolved alongside political developments. We have made every effort to provide as comprehensive coverage as possible of the gamut of issues associated with the country's politics. Also, we have sought to avoid providing mere snapshots of the subjects covered and have instead sought to focus on ongoing trends and directions.

We are acutely cognizant that, despite our best efforts, events will, no doubt, overtake many of these discussions. Nevertheless, it remains our fervent hope that the analyses in this volume will have identified certain core and enduring features of Indian politics. Finally, we would like to believe that the depth and breadth of this project will render the volume useful to scholars, analysts, and students of contemporary Indian politics as an essential source and reference point.

The outcome of this project, temporarily halted by the ravages of the Covid-19 pandemic, is now finalized, thanks to the efforts of a great many people. The enterprise stemmed from a generous Presidential International Research Award from the Office of the Vice President of Research at Indiana University, Bloomington. Accordingly, we wish to thank Professor Fred Cate, the vice president for research, who chaired the committee that awarded us this grant.

We also wish to thank Professor Michael Dodson, the academic director of the Indiana University Gateway in New Delhi for his support for this project. Our thanks are also owed to Zafeena Suresh, the director of the Gateway, and especially, to Minu Thomas, the program coordinator, for her unstinted support during the conference. Also, in New Delhi, we thank Tishya Sethi, the associate director of the University of Pennsylvania Institute for the Advanced Study of India in New Delhi, for her generous assistance with the logistics of the conference, and Anuradha Bhasin for her excellent copyediting of all the chapters.

Additionally, we thank Aashna Khanna, a doctoral student in the Department of Political Science at Indiana University, Bloomington. She has been associated with this project from its very inception, and she diligently tackled a range of tasks associated with it. We also thank Kate Vernallis, a graduate student in the department, for her

unstinted support with the conference logistics. Finally, we thank Spenser Warren, another doctoral student in the department, who helped with the final preparations for the conference.

And last but not least, we thank all the contributors who have enabled this volume for their participation in this scholarly enterprise.

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PART I

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CORE INSTITUTIONS

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CHAPTER 1

RIGHTS AND CITIZENSHIP

NIRAJA GOPAL JAYAL

THE integral relation of rights to citizenship is perhaps nowhere captured more profoundly than in Hannah Arendt's famous phrase *the right to have rights*.¹ This encapsulates the two most consequential elements of citizenship: the first use of the term 'right' signifying legal status, representing the threshold condition which alone makes it possible to have any other rights, and the second, referring to the specific rights to which citizens, holding such legal status, are entitled. Both these dimensions characterize the relationship between the citizen and the state, and though relations between citizens, such as those of identity and belonging, are also an important aspect of citizenship, the focus of this chapter is on the first two.

In any democracy, it is rights or entitlements that are foremost in the popular imagination of citizenship, invariably presuming legal membership in the political community, which is the prerequisite for the enjoyment of these rights. Such membership may be inaccessible, as in colonialism, or hollow, where citizenship is graded, with some groups enjoying more rights than others. Even where it formally exists, it could be devoid of substance if there is a gap between the formal equality of citizenship rights and the substantive inequality of their realization. Redress for this most challenging but also most common divergence between the formal and the substantive often takes the form of a distinction between broadly two types of rights: civil and political rights (e.g. the freedom of speech and expression or the right to vote, which may be equally available to all) and social and economic rights (e.g. the right to education or work or food), without which the conditions for effective citizenship may be seen to be lacking. The rights of *social* citizenship, in other words, are seen as essential for the meaningful realization of the civil and political rights that citizens enjoy by virtue of the formally equal status of legal citizenship.

These dilemmas were well apprehended by the founders of the Indian republic. Even before independence, when Indians were mere subjects, several decades away from

¹ Arendt 1962.

becoming citizens, a lively discussion on rights—civil and political, but also social and economic—was underway in the public sphere.² The right to free speech, the right to the vote, and the right to resistance were, already in the 1920s, seen as inseparable from citizenship, and a part of the claim to national self-determination. The Motilal Nehru Committee Report (1928) recommended an extensive range of rights—from equal civil and political rights such as universal adult suffrage and the freedom of religion, to the rights to education, health, work, and a living wage.³ Social and economic rights were as much part of the discourse of rights in colonial India as were civil and political rights. The Karachi Resolution of the Congress in January 1931 bears eloquent testimony to this as does the closing speech of Dr Ambedkar to the Constituent Assembly in November 1949, which, couched in the language of equality, illustrates the prescient recognition of the contradiction between political and social citizenship, and of the fragility of political democracy in the continued absence of social and economic equality.

In politics we will have equality and in social and economic life we will have inequality. In politics we will be recognising the principle of one man one vote and one vote one value. In our social and economic life, we shall, by reason of our social and economic structure, continue to deny the principle of one man one value. . . . How long shall we continue to deny equality in our social and economic life? . . . We must remove this contradiction at the earliest possible moment or else those who suffer from inequality will blow up the structure of political democracy which is Assembly has to laboriously built up.⁴

The salience of the legal dimension of citizenship (and its Others, viz. alienage and statelessness) is a peculiarly contemporary phenomenon. In the Global North, citizenship in the ‘thin’ legal sense was simply taken for granted up until the 1990s; it was the project of building ‘thick’ citizenship, through multicultural policies, that engaged these societies. Today, legal or thin citizenship is being acknowledged anew as a necessary precondition for any other kind of citizenship, with an affirmation of juridical personhood, being as important as moral personhood for what Arendt called the right to have rights. Social or substantive citizenship is obviously unavailable to those who lack formal legal citizenship.

As far as the *basis* of legal citizenship is concerned, it has been customary to divide the world of sovereign states into those where the basis of citizenship is *jus soli* (‘birth on the soil of the country’) or *jus sanguinis* (‘blood, descent, or race’), with the first being considered the more progressive of the two. Of late, a hybridization of these two has occurred all over the world, including in India. These two rival bases of citizenship were the subject of a contentious debate in India’s Constituent Assembly, which expressed an unambiguous preference for citizenship by birth (*jus soli*), describing it as the more

² Jayal 2013, Chapter 5.

³ Chandhoke 2016, 191–2.

⁴ Rao 1968, 944–5.

enlightened, modern, civilized, and democratic conception of citizenship, as opposed to the principle of *jus sanguinis*, which was described as an idea of racial citizenship. However, the provisions of the Indian Constitution on legal citizenship, the first type of right in the Arendtian phrase, were a stopgap solution, restricted to the status of people moving between India and Pakistan in the extraordinary times of the Partition. For the longer term, the Constituent Assembly left it to Parliament to determine the answer to the question of *who* is or can be an Indian citizen, which it did in 1955 with the passage of the Citizenship Act. The normative framework provided by the Assembly found expression in this law, which gave a statutory basis to the idea of *jus soli* or citizenship by birth, in addition to providing for citizenship by birth, descent, naturalization, and registration.

In terms of *what* citizenship offered, the Constitution provided for a universalist conception of equal citizenship to all, regardless of religion, race, caste, and gender, with a fairly elaborate set of rights (in the second Arendtian sense). While the placement of social rights in a chapter titled Directive Principles of State Policy did generate some dissatisfaction, some of these later found recognition as fundamental rights, through public action and judicial pronouncements.

In the pages that follow, I will examine separately the major challenges to citizenship (in terms of legal status) and rights (in terms of civil, political, social, and economic rights), and then bring them into conversation with each other on a common template, that of formal and substantive citizenship.

CITIZENSHIP AS LEGAL STATUS

Over the last few decades, the principle of *jus soli* has come to be increasingly weakened and eroded in favour of the principle of *jus sanguinis*. Several amendments to the law on citizenship, since 1985, have inserted new requirements and new exceptions to the principle of *jus soli* as the basis for citizenship.

The original trigger for this was the political discontent in Assam, which had witnessed in-migration from 1947 onwards, over the dilution of the Assamese identity, its culture and language. This peaked in 1971, when the bloody creation of the new state of Bangladesh led to the influx of 10 million refugees, and continued steadily thereafter. Many of these immigrants had acquired forms of what Kamal Sadiq has called 'paper citizenship' or 'documentary citizenship' through 'networks of complicity' and 'networks of profit'.⁵ In 1985, in the wake of the gruesome Nellie massacre of 1983, the Assamese student organizations that had led the agitation against the enfranchisement of migrants from Bangladesh entered into the Assam Accord with the Rajiv Gandhi government, leading to an amendment in the provisions relating to naturalization in

⁵ Sadiq 2009.

the Citizenship Act. This amendment created three categories of eligibility for citizenship based on the year of migration. All of those who came before 1966 were declared citizens; those who came between 1966 and 1971 were struck off the electoral rolls and asked to wait 10 years before applying for citizenship, and those who came after 1971 were simply deemed to be illegal immigrants. Though these provisions were a response to the genuine grievances of the Assamese, they already contained the seeds of the politicization and incipient communalization of the issue of migrants.

Today, anyone born in India before 1987 is legally an Indian citizen. However, persons born in India between 1987 and 2003 are not entitled to citizenship by birth, unless they have one parent who is an Indian citizen. Since 2004, persons born in India who at the time of their birth have one parent who is an ‘illegal migrant’ are ineligible for citizenship by birth. Because many of the migrants into Assam from Bangladesh were Muslims, the category of the ‘illegal migrant’ was a way of covertly introducing a religion-based exception to the principle of citizenship by birth. This was complemented, in the same year, by an amendment to the Citizenship Rules that excluded ‘minority Hindus with Pakistani citizenship’ from the category of ‘illegal migrants’. Thus, Hindu migrants who had come into the border states of Western India from Pakistan were legally destigmatized.

The most recent, and immensely controversial, amendment is the Citizenship (Amendment) Act 2019 (henceforth CAA), which breaks with the past in introducing an explicit religious criterion into the law. It facilitates a fast-track pathway to citizenship by naturalization for Hindu, Sikh, Christian, Buddhist, Jain, and Parsi ‘illegal migrants’ from three countries—Afghanistan, Bangladesh, and Pakistan—and promises citizenship by birth to their descendants. The Statement of Objects and Reasons of the Bill stated that this provision was meant to help religious minorities who were victims of persecution. However, neither the text of the amended law nor the Rules notified in March 2024, mention religious persecution,⁶ or any requirement to establish persecution or any procedure to validate it. What the text of the law does say is that such persons will no longer be called ‘illegal migrants’; by implication, only Muslims will.

The BJP’s position that the CAA is a way of completing ‘the unfinished business of partition’⁷ does not explain the inclusion of Afghanistan, which was never a part of British India. Conversely, the obvious exclusion of Muslims from this list of faiths, as well as the exclusion of Sri Lanka and Myanmar as neighbouring countries from which migrants may and do come, has been interrogated. The official justification is that the new law will only cover *persecuted religious minorities* in the three specified countries who are, by virtue of such persecution, deserving of India’s compassion. Further, the cut-off date of 31 December 2014 suggests that persecution has been discontinued since.

⁶ The Rules are required to give effect to the Act, and the Home Ministry has already sought nine extensions to frame them.

⁷ Press Trust of India, “CAA an ‘unfinished’ business of independence, partition: Panda.” *Business Standard*, January 8, 2020.

The implication is, first, that only Muslim states are persecutors, and their targets are people belonging only to these six faiths; and second, that non-Muslim (Buddhist) states like Sri Lanka and Myanmar do not persecute anyone at all. This flies in the face of the well-documented persecution of Ahmadiyyas in Pakistan, Hazaras in Afghanistan, the Rohingyas in Myanmar, and Tamil Hindus from Sri Lanka. It also fails to account for why groups that have suffered other forms of persecution, ethnic, racial, political, or any other, should not be entitled to the compassion of Indians.

If the CAA opens up pathways to citizenship for favoured groups of migrants, welcomed only on grounds of their faith and their countries of origin, a twin initiative, the National Register of Indian Citizens (henceforth NRC), opens up paths to statelessness for groups that are disfavoured, equally exclusively, on the basis of their faith. Together, the NRC and the CAA signal the transformation of India into a majoritarian polity in which some categories of citizens would enjoy the privileges of inclusion, while others would suffer the disabilities of exclusion. The creeping move from soil to blood as the basis of citizenship represents a shift from a religion-neutral law to a law that differentiates based on religious identity. Once a reasonably successful experiment in pluralism and diversity, India's delicate social fabric is now fraying as a result of this and other ways in which the marginalization of minorities has been effected, leading to an erosion of the cultural rights constitutionally guaranteed to them.

This social and political transformation has been in the making for at least 2 decades.⁸ The undermining of the constitutional design of civic universalism reflects the marked shift towards religious majoritarianism that has come to dominate Indian political discourse since the ascendance of the Bharatiya Janata Party (henceforth BJP). The party's ascent to power over 2 decades ago was based on its claim of representing the cause of Hindu unity and of counteracting the alleged 'appeasement' of religious minorities, under previous secular regimes, which was accomplished through a demonization of India's largest religious minority, the Muslims. Its strategy of political mobilization deployed a narrative in which practically every component of its programme was projected as a form of redress for the historical grievances of Hindus, and of undoing and avenging the history of Hindu oppression by Muslim rulers 1000 years ago. The demolition of the Babri Masjid in 1992 was an important milestone on this journey, and, while the BJP first held power from 1998 to 2004, Prime Minister Atal Behari Vajpayee stewarded a coalition government in which divisive issues were placed on the backburner. In 2014, the BJP led by Narendra Modi became India's first majority government since 1984 and the first non-Congress government ever to win such a majority, giving an impetus to the project of Hindutva. In the latter phase, exclusionary hypernationalism has encouraged societal practices such as the systematic 'othering' of, and even vigilante violence against, vulnerable religious minorities. The amendments to the law of citizenship are a key element of this political project.

⁸ Cf. Jaffrelot 2010.

The idea that citizenship can be based on faith, with a hierarchy of citizenship rights, undermines the constitutional principle of universal equal citizenship. The idea that it is acceptable to discriminate between citizens on the basis of religion strikes at the root of everything the Indian Constitution and the Indian nation-building project have stood for. It also provokes the concern that once the principle of discrimination on the basis of religion is admitted on the question of who can be a citizen of India, it may not be possible to limit or contain its further application to other realms; it could plausibly be extended to a graded citizenship in which different sets of rights and entitlements accrue to different tiers of citizens. The constitutionality of the CAA is yet to be juridically determined, but what is unquestionably at stake is the foundational vision of a pluralist inclusive polity in which citizenship is universal and equal, and where religious identity is immaterial to the rights of citizens. As a shift from a civic-national conception of membership in the political community to an ethnic-national conception of these, it also has significant political implications. The reluctance to accept the equal moral and legal personhood of all exposes the weakness and even hypocrisy of India's commitment to human rights. Finally, from an international perspective, it highlights again the long-standing refusal to sign international treaties on refugees and the reduction of statelessness.

THE RIGHTS OF CITIZENS

Civil and Political Rights

The debate on the CAA brought to public attention the first two of the fundamental rights in the Constitution: Article 14, which guarantees the right to equality, a broad and generous constitutional provision that applies to any person in India, and Article 15, which provides that the state will not discriminate against any citizen on the basis of religion, race, caste, sex, or place of birth. The Supreme Court's verdict on the constitutionality of the CAA in relation to these two provisions, when it comes, will be a pronouncement on the ambit and the limits of the constitutional guarantee of equal citizenship.

The assumption that the guarantee of civil and political rights in India has—with the exception of the Emergency period (1975–1977)—been robust lies at the heart of celebratory narratives of the success of India's democracy. The law and Constitution have indeed provided individuals with the full range of civil and political rights: freedom of speech and expression, of conscience, of religion, of peaceful assembly, and of association; the right to free and compulsory education; the right to vote; and the right against exploitation. The provision of this extensive panoply of rights is a testament to India's progressive Constitution and its founders' vision of a liberal-constitutional democracy. Its sustenance, over 7 decades, is also undoubtedly a considerable achievement.

Nevertheless, there are at least three ways in which this constitutional vision has been diminished and even tarnished. The first of these is in the constitutional provisions themselves, which qualify the fundamental rights with considerations of ‘public order’ and morality. Thus, even as the freedom of speech and expression is guaranteed, the state may make any law that limits this right if it is ‘in the interests of the sovereignty and integrity of India, the security of the State, friendly relations with foreign states, public order, decency or morality ...’⁹ Determining the necessity for such restraints on the exercise of the freedom by citizens is the domain of the executive branch, though the courts have the last word in adjudicating this. Here, the record of the courts is fairly mixed. For several decades, they were well disposed towards restraints on free speech on grounds of public order or morality, and most of all, on grounds of giving offence to the sentiments of a community. The jurisprudence on the subject, it has been argued, has reflected a tension between two approaches: the liberal-individualist and the paternalist.¹⁰ The first, favouring individual freedom, is wont to interpret laws on obscenity or defamation restrictively; the second tends to give the state greater power to ban speech that may be offensive, dangerous, or subversive. More often than not, the judiciary has favoured the paternalist approach, thereby encouraging criminal defamation suits and book bans. In the digital sphere, India has been the world leader in internet shutdowns since 2018, with the highest total number of shutdowns worldwide in 2022.¹¹ Freedom of speech and expression, including academic and artistic freedom, has also been vulnerable to threats by vigilante censors on social media, sometimes actually instigating violence. Similarly, civil society organizations working in the fields of human rights and environmental justice have been muzzled by the use of tax laws and regulations governing foreign funding.¹²

There has also been an alarming tendency in recent years to make arbitrary arrests for sedition, under Section 124A of the colonial-era Indian Penal Code. Despite judicial pronouncements declaring that speech would be considered seditious only if it is a call to violent insurrection or the overthrow of the government, the law on sedition has been promiscuously used to quell even the mildest forms of political dissent and criticism of government. In 2011–2013, the Tamil Nadu police booked about 9000 people under this law as punishment for their peaceful protest against the establishment of a nuclear power plant in Kudankulam.¹³ Similarly absurd was the charging in November 2019 of 10,000 Adivasis in one district of the state of Jharkhand with sedition, in response to the Pathalgadi movement for the protection of tribal land rights.¹⁴ In the midst of these retrogressive measures, there is one case—*Shreya Singhal v. Union of India* (2015)—in

⁹ Article 19(2).

¹⁰ Bhatia 2019, 494.

¹¹ Kaskar 2023. ‘India Remains Internet Shutdown Capital of the World for Fifth Year Running’. *The Wire*, 28 February.

¹² Jayal 2019, 40.

¹³ Janardhanan 2016.

¹⁴ Sharma 2019.

which the court defended free speech by striking down Section 66A of the Information Technology Act. This section, which criminalized 'offensive' online speech, had been used to arrest and imprison two young girls one of whom had, in a Facebook post, lamented the shutdown of the city of Mumbai for the funeral of a politician, and the other had 'liked' it.

Secondly, there are significant impediments—predominantly social and cultural—to the realization of these rights for historically disadvantaged groups such as Dalits and Adivasis, as well as those belonging to economically underprivileged classes. The ability of the poor to access rights on an equal basis with other citizens or even to invoke the principle of the rule of law—equality before the law and equal access to the law—when their rights are violated is routinely thwarted. The high rate of crimes against Dalits and the low rate of prosecution for the perpetrators of such crimes points to the obstacles to securing justice under the Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act 1989. The disproportionate presence of lower castes and minorities in the ranks of those on death row is also disturbing.¹⁵

The guarantee of universal adult suffrage is also an inadequate guarantee of substantive political equality, as policies on poverty and basic needs do not reflect the preferences and interests of the poor, despite their larger numbers. The stranglehold of money on the conduct of electoral politics is well known, as is its nexus with muscle and even crime.¹⁶ The fact that the Sixteenth and Seventeenth Lok Sabhas have been the most plutocratic in the history of India's democracy is also indicative of the limitations of formal equality.

Finally, the celebration of the equal rights of citizenship and the rule of law often occludes from sight the enduring background presence of extraordinary laws. A standard feature of colonial governance, a series of such laws, beginning with the Preventive Detention Act 1950, has been enacted in the postindependence period, invariably justified by the imperatives of state security. To the extent that such laws place inordinate powers in the hands of the coercive machinery of the state, their operation inevitably entails a sacrifice of civil liberties and human rights. Such laws have also often been used in ways that are politically and ideologically partisan. The ostensible purpose of the Maintenance of Internal Security Act 1971 (MISA) was the control of Maoist violence, but it was deployed most notoriously against political opponents during the National Emergency (1975–1977) on grounds of countering threats to national security such as sabotage sponsored by foreign powers. It provided for the indefinite preventive detention of individuals, for search and seizure without warrants and for tapping of telephone lines. It was used to arbitrarily imprison and torture political opponents who could be preventively detained for indefinite periods under this law. The MISA was repealed in 1977 by the Janata Government, but a swathe of other such legislations followed, including the Terrorist and Disruptive Activities Act 1985 (TADA), enacted to

¹⁵ Sen 2016.

¹⁶ Vaishnav 2017.

deal with the Khalistan movement in Punjab, but also used extensively in the early 1990s by state governments such as those of Rajasthan and Gujarat to imprison hundreds of people, mostly Muslims. In 1998, the Prevention of Terrorist Activities Act (POTA) succeeded the TADA, and it became an instrument of partisan politics—deployed selectively against Muslims in the Godhra violence 2002 (declared a terrorist act) but notably not used to punish the perpetrators of the anti-Muslim violence that followed in the rest of Gujarat in 2002. In 2008, the National Investigation Act was enacted, as draconian as the POTA, with only one significant departure (*viz.* that confessions before a police officer would not be admissible in court). Other than this, the presumption of guilt unless proved otherwise remains. Successive amendments to the Unlawful Activities Prevention Act 1967 (UAPA) have made it increasingly draconian. This law has been freely used to designate activists and political dissidents as terrorists, who can be detained without the state being required to produce incriminating evidence and extremely stringent bail conditions, thus resulting in a large number of arrests but very few convictions. To the extent that extraordinary laws like the UAPA enable the exercise of arbitrary power by the state, they diminish the citizen's access to the most basic rights of life and liberty.

If TADA was used as an instrument to contain identity politics (e.g. Sikhs in Punjab and Muslims in Kashmir, Assam, and Bombay),¹⁷ studies of the POTA—including civil society reports by Amnesty International, Human Rights Watch, and the People's Union for Democratic Rights—have pointed to its selective and partisan targeting of minorities and the human rights abuses that it has facilitated. A constant has been the use of the Armed Forces Special Powers Act 1958 (AFSPA) to deal with counterinsurgency in the north-east. This is a law that protects security personnel from prosecution and has allegedly done so in cases of serious human rights violations—such as shooting at and killing innocents—by security forces.

Social and Economic Rights

To the extent that the inequalities of social class (or indeed caste, tribe, gender, or race) render vacuous the formal equality guaranteed by the law, it is through welfare policies that the mitigation of these inequalities is attempted. In a society marked by class inequality, citizenship itself becomes what T. H. Marshall called the architecture of legitimate social inequality. For Marshall, the public provisioning of health, education, legal aid and housing were intended to achieve not absolute equality but the removal of inequalities that could not be considered legitimate. His canonical definition of social citizenship thus entails 'the whole range from the right to a modicum of economic welfare and security to the right to share to the full in the social heritage and to live the life of a civilised being according to the standards prevailing in the society'.¹⁸

¹⁷ Singh 2007, 53–54.

¹⁸ Marshall 1950, 11.

In India, the placement of social and economic rights in the nonjusticiable Directive Principles of State Policy suggested that welfare was a postdated cheque, because the social product was small, and universal welfare provisions were unaffordable. Indeed, in the early decades following independence, the language of welfare was invariably the language of charity, state largesse, and paternalism in the form of poverty relief or alleviation. At the same time, governmental attempts to advance social policy in a 'socialist' direction, as in the conflict over land reform, triggered conflict between the legislature and the judiciary, with social rights (championed by the government-in-parliament) being represented as adversarial to civil and political rights (defended by the judiciary).

Over time, categories of 'beneficiaries', the most deserving recipients of welfare, were evolved but universal public provision remained a chimera, not attaching to citizenship in the way in which civil and political rights were linked to it. While some states—like Tamil Nadu and Kerala—adopted progressive social welfare policies, these were regional exceptions to a national landscape largely bare of social rights, despite the pronouncement of the Supreme Court in 1981 that:

The right to life includes the right to live with human dignity and all that goes along with it, namely, the bare necessities of life such as adequate nutrition, clothing and shelter and facilities for reading, writing and expressing oneself in diverse forms, freely moving about and mixing and commingling with fellow human beings.¹⁹

At the national level, a combination of social movement mobilization and judicial activism led to an efflorescence of social rights in the noughties. The civil society campaigns were addressed to a receptive United Progressive Alliance government (2004–2009 and 2009–2014), with the leading representatives of these movements and campaigns serving as members of the National Advisory Council. Among the earliest of such initiatives for social rights were the campaigns for the right to food, which resulted in the passage of the National Food Security Act 2013; the right to information, which resulted in a path breaking legislation, the Right to Information Act 2005; and for the recognition of community rights in forests, resulting in the passage of the Forest Rights Act 2006. Also in 2006, the enactment of the National Rural Employment Guarantee Act helped to launch a scheme providing 100 days of employment on public works to every rural household willing to perform manual labour for a statutory minimum wage. While not a full-blooded right to work, this goes some way towards providing a legal entitlement that helps to mitigate the worst hardships of rural penury. Mocked by Narendra Modi in the early days of his prime ministership, it was soon recognized by his own government as deserving of an even larger budgetary outlay than before.

Over the years, the Supreme Court has read into the right to life guaranteed in Article 21 of the Indian Constitution many important rights including the right to clean air, the right to drinking water, the right to shelter and protection against eviction for slum dwellers, and even a right to health care. None of these have a sufficiently robust

¹⁹ 'Francis Coralie Mullin vs. The Administrator, Union Territory of Delhi' [1981] SCR (2) 516.

statutory basis so far, and it is likely that the doctrine of progressive realization will keep these from being realized in the near future. This will also keep alive the case for the arguably artificial wall between civil and political rights, on the one hand, and social and economic rights, on the other. The case of the right to education is instructive: the Supreme Court had in a 1993 verdict upheld the right to free and compulsory education till the age of 14 years as a fundamental right, but it was passed by Parliament as a constitutional amendment only in 2009.

Thus far, such social rights legislation as we have seen has been the outcome of a combination of social movement mobilization along with judicial activism. The Supreme Court that acted as ‘the most important catalyst’²⁰ of social rights was also a court that had previously encouraged procedural innovation in the courts enabling Public Interest Litigation. The present Supreme Court, by contrast, has manifested a disinclination to defend even basic civil rights like *habeas corpus* or freedom of speech. Indeed, instead of rights, it is the idea of citizens’ duties—introduced into the Constitution by Indira Gandhi’s notorious Forty-Second Amendment enacted by a Parliament meeting during the Emergency, when the opposition MPs were in prison—that has found new votaries in the highest court of the land. No less than the Chief Justice of India said in February 2020 that ‘real rights are a result of [the] performance of duty.’²¹ Just a few weeks later, hearing a plea seeking the enforcement of the fundamental rights of migrant workers who had lost their jobs and, therefore, their ability to sustain themselves as a result of the lockdown following the COVID-19 pandemic, the same Chief Justice asked why they needed wages if the government was giving them meals.²²

CONCLUSION

The legal status of equal citizenship and the equal civil and political rights of citizens have largely been taken for granted in independent India. Today, with the Citizenship Amendment Act 2019, and the looming threats of the National Population Register, as well as a National Register of Citizens, the laws of citizenship are in contention as never before, as they portend the dissolution of the principle of universal equal citizenship in favour of a faith-based citizenship regime, if not a graded and hierarchical one. The jeopardizing of the first ‘right’ in the Arendtian phrase has deleterious consequences for the second set of ‘rights’. An attrition of basic civil and political rights has been occurring even as social and economic rights, to the meagre extent they were previously available, are effectively stymied.

Until recently, the project of realizing citizenship in the fullest sense sought to translate the legal guarantees of formal citizenship into substantive citizenship, through

²⁰ Ruparelia 2013, 573.

²¹ *Hindustan Times* 2020.

²² *Bar and Bench* 2020.

an architecture of welfare based on social rights. Today, not just substantive citizenship but even formal equal citizenship is imperilled. Not only do social and economic rights appear unattainable, the access of citizens to basic civil and political rights is also compromised.

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CHAPTER 2

THE LOK SABHA

M. R. MADHAVAN

INTRODUCTION

THE Indian Parliament has two chambers. The Lok Sabha or the House of the People is the directly elected chamber, and the Rajya Sabha or the House of States is elected by members of state legislative assemblies. Its functions—like those in most Westminster-style democracies—are to hold the government in check, make laws, and sanction government expenditure.

There are some key differences in the functions of the two Houses. The government of the day is elected by the Lok Sabha and is required to have the confidence of the House at all times.¹ Consequently, Money Bills—those imposing taxes or sanctioning government expenditure—are primarily decided by the Lok Sabha, with the Rajya Sabha playing only a recommendatory role. On other bills, the two Houses have equal powers; a disagreement between the two can lead to a joint session, in which the membership of the Lok Sabha outnumbers that of the Rajya Sabha by a factor of 2.2:1. However, this has occurred rarely, only thrice so far.² In case of an amendment to the Constitution, the two Houses have an equal voice. This chapter focuses on the Lok Sabha, although some of the discussions in the next section would apply to the Rajya Sabha too.

Members of the Lok Sabha are directly elected by all citizens who are aged 18 years and older from geographically demarcated constituencies. Currently, there are 543 constituencies. Seats have been reserved for Scheduled Castes and Scheduled Tribes

¹ Article 75 of the Constitution of India.

² Article 108 of the Constitution says that if the two Houses do not agree on a bill, the president can summon a joint sitting. The three bills that led to a joint session were the Dowry Prohibition Bill 1961; the Banking Services Commission (Repeal) Bill 1978; and the Prevention of Terrorism Bill 2002. All three were passed.

in line with their proportion in each state’s population. Until 2019, two Anglo-Indian members were also nominated.

The functioning of the Lok Sabha has declined over the decades. From working an average of 121 days per year during the 1950s and 1960s, the number has declined to 68 days between 2000 and 2023 (see Figure 2.1). To add to this, proceedings of the Lok Sabha are frequently disrupted by members, and this leads to a loss of working time. Though this loss may be partly recovered by working late, we see that a significant amount of time is lost. Also disruptions of important interventions such as the Question Hour—when Members of Parliament (MPs) ask questions to ministers—are not recovered through compensatory sitting time. While the early years clocked in more time than originally planned, about 20% of the planned time has been lost to disruptions in the last 2 decades (see Figure 2.2). Consequently, while the first few Lok Sabhas met

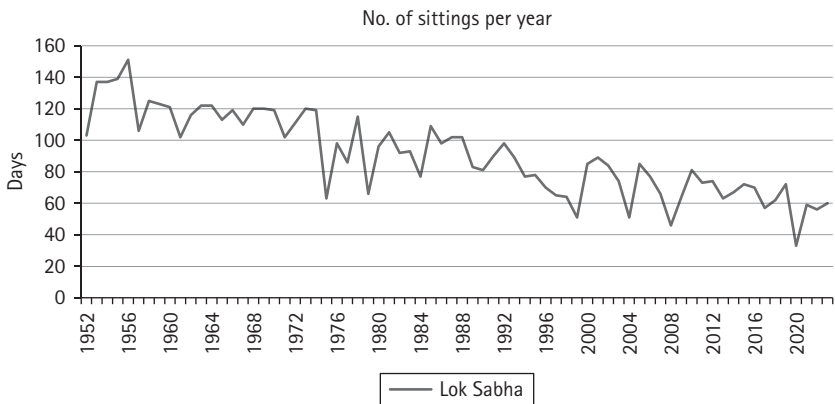


FIGURE 2.1 The Lok Sabha Sits Less Frequently
Source: *Handbook of Statistics*, Ministry of Parliamentary Affairs; PRS Legislative Research.

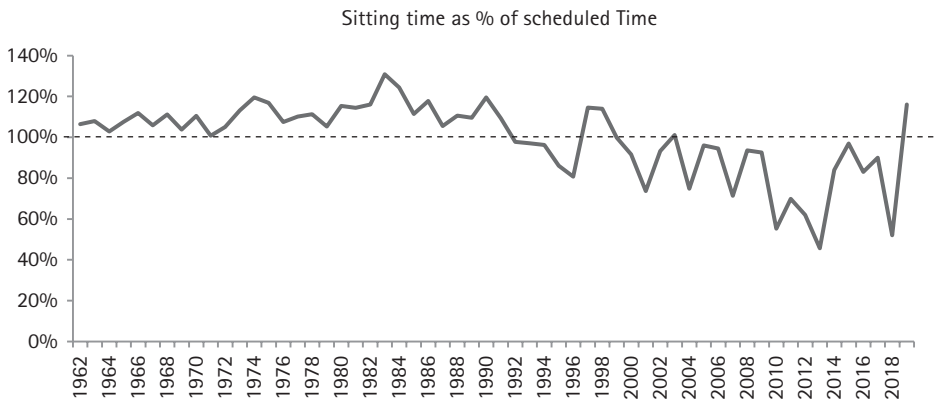


FIGURE 2.2 A Significant Portion of the Scheduled Time Is Lost to Disruptions
Source: Collated from Resumes of Sessions of Parliament by PRS Legislative Research.

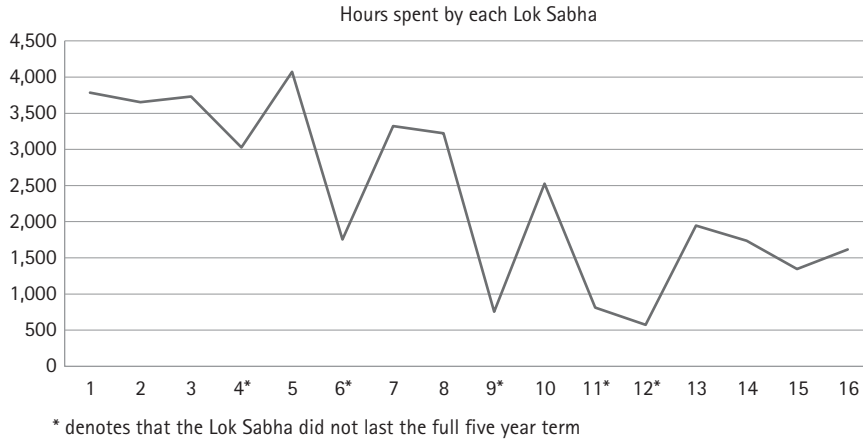


FIGURE 2.3 The Total Number of Hours Met by the Lok Sabha Has Declined

Source: *A Study of Lok Sabhas*, by Lok Sabha Secretariat, Session Resumes collated by PRS Legislative Research.

for over 3500 hours during their term, this has dropped to below 2000 hours in the last 2 decades (see Figure 2.3).³

There are several processes that need to be strengthened to make the Lok Sabha more effective. In this chapter, we focus on two areas that we believe are central to safeguard the House as an institution of accountability. First, we discuss how the antidefection law and lack of mandatorily recording their votes have undermined the representative character of MPs. Then, we examine the role of the Speaker and whether the office acts in an impartial manner.

THE ROLE OF LOK SABHA MPs, THE ANTIDEFECTION LAW, AND RECORDED VOTING

The Constitution provides a system of checks and balances. In particular, it checks the power of the government in two broad ways: the judiciary may test the legality of the government's actions and can require it to take corrective steps, and Parliament can test the appropriateness of its actions and check and challenge its functioning and formulation and implementation of policies.

There are three major functions that MPs perform. First, they make national laws (i.e. laws on subjects that fall under the Union List and Concurrent List of the Seventh

³ For a detailed analytical look at the functioning of Parliament from 1952 to 2014, see Madhavan (2016).

Schedule to the Constitution). Second, they hold the government accountable for its actions through questions, debates, and motions on various issues. In particular, the Lok Sabha has the power to remove the government through a no-confidence motion. Third, they sanction government expenditure. Any expenditure by the government from the Consolidated Fund of India requires prior approval of the Lok Sabha, and its usage is subsequently monitored by Parliament.

Lok Sabha MPs are directly elected by adult residents of a constituency. There are differing theories on representation (i.e. how MPs should act while fulfilling their roles). On this, there are, broadly speaking, two schools of thought: one that believes that MPs are delegates of their constituents; the other views MPs as trustees. The delegate theory, as first explained by Madison, holds that the representatives are expected to ascertain the wishes of their electors and present that view in the Assembly.⁴ The trustee concept, enunciated by Burke, expects representatives to exercise their judgement towards the interests of those they represent. He further argued that Parliament was a deliberative body, and MPs should discuss ways to further the common national interest rather than the parochial interests of their constituents.⁵

In practice, MPs act as both delegates and trustees. It is impossible in large constituencies to ascertain the view of residents on each issue, so MPs have to exercise their judgement (i.e. act as trustees). However, if their positions on important issues differ from those of a majority of their constituents, they would risk losing the next election, so they have to represent the wishes of the constituents (or act as delegates).⁶

The Indian experience over the last 35 years has upended these theories. The antidefection law has made MPs the delegates of their parties, while the practice of not recording most votes has weakened the accountability to the electorate.

The Antidefection Law and the Whip System

The role of the MP was subverted by the Fifty-Second Amendment to the Constitution 1985. This amendment added the Tenth Schedule and made changes to the Articles related to vacancy and disqualification of MPs and members of state legislatures.

In brief, the Tenth Schedule states that an MP is not permitted to leave the party on whose ticket he was elected. Further, the MP has to follow the direction of the party on every vote, failing which, he may be disqualified from his membership to the legislature. That is, the seat would be vacated, and there would be a by-election.

This is a bad law in principle. The MP is no longer representing his conscience and acting in the national interest as perceived by him. Neither is the MP acting as a representative of the constituency and acting on the constituents' interest. There may be

⁴ Madison 1787.

⁵ Burke 1774.

⁶ It is interesting to note that Burke made this famous speech after being elected. And that he failed to get re-elected from Bristol.

instances where the MP's beliefs and the constituency's interests may lie in one direction, while the party directs the MP to vote otherwise. Under this law, the MP has no choice but to follow the party diktat, failing which he would lose membership to the House. This law has converted MPs from being representatives of the people to delegates of the party.

Its practice shows that the law has failed its main objective. It was brought about purportedly to address 'the evil of political defections' as 'it is likely to undermine the very foundations of our democracy and the principles which sustain it'.⁷ There are many examples to illustrate its failure to do so (though some may argue that we would have witnessed more defections in its absence—it is difficult to prove or disprove such a statement). For example, the last instance of a motion when the government could have lost its majority occurred in July 2008 after the Left Front parties withdrew support to the Manmohan Singh led government. In the confidence motion to test the government's legitimacy to continue being in power, 21 MPs voted against the party whip.⁸

The law has been modified a number of times, and there has been an arms race between such modifications and the ability of legislators to find loopholes. When the law was first passed, it permitted a group of MPs to leave their party if they constituted at least one-third of the membership of the party in the House. This provision was frequently used, and in 2003, the Constitution was amended to remove this provision.⁹ Another change was made to address incentives given to an MP to switch sides—any person disqualified under this law was prohibited from becoming a minister until he won an election to the House.¹⁰

Parties have found ways around these provisions. An MP is not disqualified if the party merges with another party; this requires two-thirds of the members to agree to the merger. In 2009, 10 of the 15 Members of the Legislative Assembly (MLAs) of the Indian National Congress (INC) in Goa decided to merge with the Bharatiya Janata Party (BJP), and some of them were made ministers.¹¹ In a similar move, again in 2019, the Telangana Legislative Assembly saw this provision being used. One of the 19 MLAs of INC was elected to the Lok Sabha and resigned his membership to the State Assembly. Soon, 12 of the remaining 18 MLAs declared their intent to merge with the Telangana Rashtra Samithi, the party in power.¹²

When a party is unable to entice two-thirds of the members of another party to defect, they use other tactics. For instance, a few defecting members resign from the House, ensuring that they are not 'disqualified'. They can then be made a minister with the requirement of getting elected within 6 months. Such a manoeuvre was attempted

⁷ Constitution (Fifty-Second) Amendment Act 1985.

⁸ *Economic Times* 2008.

⁹ Constitution (Ninety-First) Amendment Act 2003.

¹⁰ Constitution (Ninety-First) Amendment Act 2003.

¹¹ *Times of India* 2019.

¹² *The Hindu* 2019 (1).

in Karnataka in 2019, when several members of the Congress Party and JD(S) resigned their memberships. However, the Speaker ruled that they had acted against the parties' directions before they resigned and disqualified them. He also disqualified them from getting re-elected for the term of the Assembly. The Supreme Court upheld their disqualification but said they had a right to contest elections.¹³ The electorate does not seem to mind—in Karnataka, 11 of the 13 MLAs who resigned in 2019 using this tactic and contested the subsequent by-election on the ticket of their new party were re-elected.¹⁴

Another related tactic is to play with the total membership. Take for example, the strength of the House as 100, with the ruling side having 52 members and the opposition 48. Five members of the ruling party are persuaded to resign, and the government then loses the no-confidence vote, 47 votes to 48 votes. The new government is formed, and the members who had resigned are made ministers (with the hope that they would win the by-elections). This method was applied by rebel Congress Party MLAs in Madhya Pradesh in 2020, which resulted in the fall of the Kamal Nath government.¹⁵ The Karnataka incident saw similar behaviour and an identical outcome.

Yet another loophole is that this law applies only to parties and not to party coalitions. Indeed, it cannot apply to coalitions, as then there is no 'authority' to issue directions. In the November 2019 elections to the Maharashtra Legislative Assembly, the BJP and Shiv Sena contested the polls as an alliance and the main opposition was from the INC and Nationalist Congress Party (NCP) alliance. The BJP-Shiv Sena alliance won a comfortable majority but neither party had a majority on its own. After much negotiations (and the drama of a short-lived BJP-led government), Shiv Sena joined up with INC and NCP to form the government.¹⁶ There was a sequel to this story mid-way through the life of the Assembly. In June 2022, 39 of the 56 MLAs of Shiv Sena formed a separate group, and their leader was sworn in as the chief minister.¹⁷ Though this number is higher than the two-thirds threshold, they may face disqualification as they did not merge with any party. Subsequently, the (newly elected) Speaker recognized a member of the new faction as the chief whip, and the latter issued a whip to all members of the original party to vote for the newly appointed chief minister in the confidence motion; several members did not follow the directions. This raises the question of how the whip who has the power to give directions will be selected. This issue was addressed by the Supreme Court, which clarified in May 2023, that the political party, and not the legislature party, was authorized to appoint the whip. It also said that the Speaker must decide on disqualification petitions within a reasonable period.¹⁸ The Speaker had not taken the decision till August 2023.

¹³ Supreme Court of India 2019.

¹⁴ *Indian Express* 2019.

¹⁵ *The Hindu* 2020.

¹⁶ *The Hindu* 2019 (2).

¹⁷ *Times of India* 2022.

¹⁸ Supreme Court of India 2023.

Often, the Speaker, who is usually from the ruling party is complicit in these manoeuvres. There have also been instances when the Speaker does not take a decision on the disqualification. Thus, 23 MPs of the YSR Congress Party joined the Telugu Desam Party in the Andhra Pradesh Assembly between 2015 and 2017, and four were made ministers, but the Speaker did not rule on their disqualification.¹⁹ In January 2020, after the Manipur Speaker had not acted on a disqualification petition (of a Congress MLA who had joined the BJP and become a minister) for nearly 3 years, the Supreme Court directed him to make a decision within 4 weeks;²⁰ the Speaker failed to do so, and the Court, in March, restrained the MLA from entering the Assembly and removed him temporarily as a minister.²¹

There have been calls for having an independent body make decisions on issues related to disqualifications as the Speaker is inherently a political personality and typically belongs to a political party.²² However, this argument misses the point of the nature of representative democracy and the role of the MP.

While the law seems to have failed to curb defections, it has succeeded in undermining the core role of an MP. The MP can no longer apply his mind to complex issues, discuss possible policy paths with his colleagues across party lines, or arrive at a broadly acceptable approach. Instead, he is required to follow the directions of the party leadership unquestioningly. There may even be instances when the constituency interests are affected—imagine the issue of a dispute between two states on sharing of river water with an MP being directed to vote against the interests of his state. Ruling party MPs can no longer act as sentinels of the public in holding the executive to account; instead, they are held to account by the party.

The government is formed by the party that has a majority in the House. The party leadership will have absolute control over the vote of all members, and, thus, any vote becomes merely a formality to endorse the government's position. This is evident from the fact that, unlike the British Parliament, in India, the government has not lost a single motion (even for a minor amendment to a bill) in the Lok Sabha in the last 15 years. Coalition governments provide some checks—the Prime Minister has to consult with leaders of the other parties in government. However, when a party wins a majority of seats on its own, there is not even this minor check. Thus, there is no necessity for the government to justify its policy approach to MPs on a regular basis. The only risk is if there are sufficient number of MPs willing to lose their seat over an issue, which is a rare situation.

The antidefection law impinges on the separation of powers.²³ It gives primacy to the party leadership that has a majority in Lok Sabha and therefore forms the government. Thus, the political executive can direct MPs to vote on all issues, including bills,

¹⁹ News18.com. 2017.

²⁰ Supreme Court of India 2020.

²¹ *Economic Times* 2020.

²² Law Commission of India 2015; Supreme Court of India 2020; Supreme Court of India 1998.

²³ Rajya Sabha Proceedings 27 July 2006. This point was made by Bimal Jalan.

in a certain manner. Even when the government does not have a majority of seats in the Rajya Sabha, the numerical superiority of the Lok Sabha could determine the vote in the eventuality of a joint session of the two Houses to resolve a deadlock. Therefore, we end up in a situation where the executive controls Parliament, which reverses the constitutional principle of parliamentary checks on the executive.

To sum up, the antidefection law has taken away the role of Parliament as the institution that checks and challenges the work of the government on a daily basis. At the same time, it has also failed to stop defections that led to the fall of governments. This provision should be repealed. Some intermediate positions have been suggested such as making the law applicable only to no-confidence motions and Money Bills.²⁴ However, for MPs to hold the government accountable with the threat of a no-confidence motion, it is necessary to repeal the antidefection law in its entirety.

Recording the Vote

An MP is elected by the adult citizens of a geographical constituency. The MP is expected to be accountable to them for his actions. While MPs meet constituents regularly, they also need to get their mandate renewed every 5 years through elections. An important part of their accountability to their constituents is their voting record in Parliament.

Usually, on most motions including bills, the Speaker takes a voice vote, and announces the result. That is, MPs supporting the motion are asked to say ‘aye’, and those opposing to say ‘no’, and the Speaker judges which side had more voices. In case an MP demands a ‘division’, the vote is recorded through an electronic voting system. Only in case of constitutional amendments, where the motion needs to be passed by a two-thirds majority, is a division always taken. In the last three Lok Sabhas, excluding constitutional amendments, over 90% of all bills were passed by voice vote (Figure 2.4).

As a result, we do not have a record of each MP’s participation on important issues. We do not even know whether they were present in the House for the vote. For example, the Criminal Laws Amendment Bill 2013, which changed the laws related to rape following a gang rape in Delhi in 2012, was a rare instance when a division was taken, from which we know that just 203 MPs of the Lok Sabha were present.²⁵

One may argue that recording a vote becomes irrelevant as whips are issued on most votes, and MPs can justify their vote by simply stating that they had no choice in the matter. Nevertheless, recording and disclosing the vote could put pressure on MPs to explain this to their constituents and, hence, to take a stance in intraparty meetings when the party position is discussed. The norm of recording all final votes can be easily developed—all it takes is for a few MPs to demand a division each time.

²⁴ A Private Member Bill introduced by Manish Tewari in Lok Sabha in 2010 proposed this change.

²⁵ Lok Sabha Proceedings 19 March 2013.

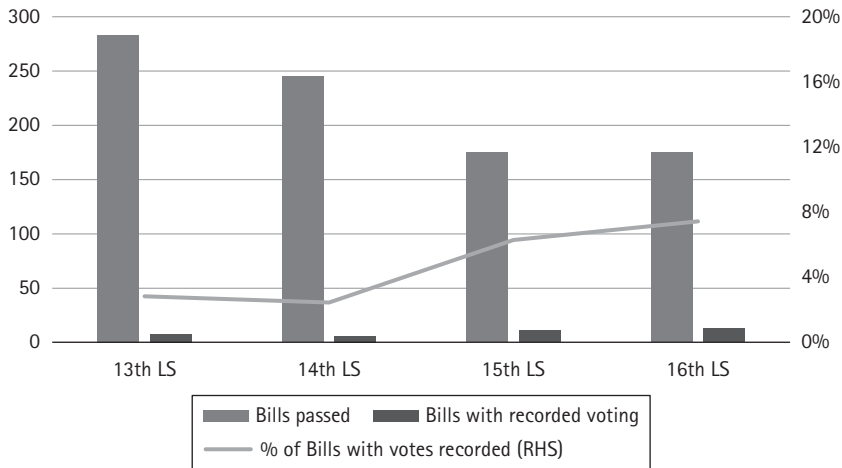


FIGURE 2.4 Votes Are Recorded for Few Bills

Source: PRS Legislative Research.

THE ROLE OF THE SPEAKER, MONEY BILLS, AND NO-CONFIDENCE MOTIONS

The Speaker of the Lok Sabha occupies a central position. He is elected by the House and, thus, is usually someone from the party or coalition that forms the government. The Rules of Procedure provide the Speaker with far-ranging discretionary powers to enable him to run the House smoothly. We have already discussed how Speakers have delayed making decisions in disqualification petitions. In recent years, other decisions have also come under scrutiny, especially on the certification of Money Bills and admission of no-confidence motions. These two processes are crucial in the constitutional scheme as the former has the effect of excluding the Rajya Sabha from some legislations and the latter is critical to validate the legitimacy of the government.

Money Bills

Money Bills contain provisions related only to taxes, government expenditure, borrowings and guarantees given by the government, and matters incidental to these. The Lok Sabha has a special role with regard to Money Bills. These bills may be introduced only in the Lok Sabha, and after the House passes them, are sent to the Rajya Sabha for consideration. The Rajya Sabha 'returns' the bill with or without recommendations; if it makes any recommendations, the Lok Sabha has the prerogative to accept or reject these. Also, if the Rajya Sabha does not return the bill within 14 calendar days, the bill is deemed to be passed. Further, the president does not have the

option to return the bill to Parliament for reconsideration, and has to give assent.²⁶ In sum, the Lok Sabha has the sole authority to pass a Money Bill.

The reason for such a provision stems from the fact that Money Bills regulate the expenditure and receipts of the government. If a government is unable to spend money to fulfil its programmes, it would be unable to function. In order to spend money, it would need authorization to impose taxes or borrow funds. And a government unable to function would have to resign. Money Bills, are therefore, similar to a confidence motion; a government that fails to pass a Money Bill is expected to resign. As the Council of Ministers is required to have the confidence of the Lok Sabha (and not the Rajya Sabha's), the Lok Sabha has the sole authority to pass Money Bills.

This power makes it important to ensure that a bill is certified as a 'Money Bill' only if it adheres to the definition and does not include other matters. Otherwise, a bill may be passed without adequate scrutiny by the Rajya Sabha and application of mind by the president at the time of giving assent.

There have been several occasions in the recent past when the Speaker's decision has been contested. The Aadhaar Bill 2016 was passed by the Lok Sabha and certified as a Money Bill by the Speaker; the Rajya Sabha made several recommendations on it, and then, the Lok Sabha rejected these recommendations and passed the bill again.²⁷ The bill set up the Unique Identification Authority, and gave statutory backing for the Aadhaar number which could be verified using biometrics. It also authorized the Aadhaar number to be used for delivery of subsidies and services by the government and permitted its use for other purposes authorized by any law. Given the wide remit of the bill, its classification as a Money Bill was challenged in the Supreme Court. The majority judgement was that the bill met the Money Bill requirement as it was primarily related to providing subsidies and benefits by the government; though the judgement examined whether the Aadhaar Bill met the required conditions, it deferred the question on whether the Speaker's decision was subject to judicial review.²⁸ A dissenting opinion ruled that the Speaker's decision was subject to judicial review as certifying a bill incorrectly as a Money Bill excluded the Rajya Sabha, and judicial scrutiny was necessary to ensure that the constitutional scheme of a bicameral legislature and review by the president was not bypassed; on examination, the dissenting opinion held that the Aadhaar Bill was not a Money Bill, and as it was passed as one, it was ruled that the Act was unconstitutional.²⁹

The issue has not been settled yet. The Finance Bill 2017 had a number of provisions that merged some tribunals, and delegated the specifications of their composition and terms of service to rules to be notified by the government. This was challenged in the Supreme Court, including on the grounds that these provisions could not have been part of a Money Bill. The majority judgement of a five-judge bench (with a dissenting

²⁶ Article 110 of the Constitution.

²⁷ Lok Sabha Proceedings 16 March 2016.

²⁸ Supreme Court of India 2018.

²⁹ Supreme Court of India 2018. Dissenting Opinion by DY Chandrachud, J.

opinion) has recommended that the question of determining the definition of Money Bill and certification by the Speaker be examined by a seven-judge bench.

The British Parliament has partly addressed this issue of the Speaker having the sole authority to exclude the other House from having a say on bills by certifying them as Money Bills. Before certifying a Money Bill, the Speaker is required to consult two members of the Panel of Chairs, appointed for the purpose at the beginning of every session by the Committee of Selection.³⁰

No-Confidence Motions

The most important role of the Lok Sabha is perhaps providing legitimacy to the government. The Council of Ministers is required to have the confidence of the House at all times, which can be tested at any time through a no-confidence motion. To deter frivolous actions, the Rules of Procedure require a no-confidence motion to have the support of at least 50 MPs before it is taken up. On receiving notice of the motion, the Speaker announces it in the House and asks those who would like the motion to be moved to stand at their place; if at least 50 members support the motion, the Speaker fixes a date and time within the next 10 days for discussing and voting upon the motion.³¹ As the government's legitimacy is being challenged through this process, such motions should get priority over other business.

In the last decade, there have been two instances when the motion did not receive due importance. In the winter session of 2013, several members gave notice for a no-confidence motion against the Manmohan Singh government. During this period, the House was frequently being disrupted by members moving into the well and shouting slogans. The motion was not taken up, with the Speaker stating that owing to disruptions, she was unable to ascertain whether 50 members were standing at their seats. However, while this notice was pending, the Andhra Pradesh Reorganisation Bill, which bifurcated the state into two entities was passed; that is, the Speaker could ensure sufficient order in the House to verify that all three readings of the bill had majority support. A similar incident occurred in March 2018 when the Speaker did not take up the notice for the no-confidence motion against the Narendra Modi government for identical reasons but allowed the Union Budget to be passed. In both instances, important government business was carried out without settling the issue of the legitimacy of the government.

These events underline the importance of ensuring that the Speaker is an impartial arbiter of proceedings of the House. In India, the Speaker is elected by the House and, therefore, is usually from the ruling party or coalition. The Speaker would require the support of party leadership to be able to contest the next election. There have been

³⁰ May 2011, 796.

³¹ Lok Sabha Secretariat 2014. Rule 198.

several instances when a Speaker has gone on to become a minister or the governor of a state.³² These factors could affect the independence and impartiality of the office.

The British Parliament again shows a way out of this conflict of interest. To be elected as Speaker, the nomination must be sponsored by at least three MPs from parties other than that of the candidate. Once elected to the post, the Speaker resigns from his political party and remains removed from political questions even after retirement.³³ The Speaker contests the next general election as 'Speaker seeking re-election' and not on a party ticket, and major political parties do not nominate a candidate from that constituency, thus almost ensuring re-election.³⁴ Further, the Speaker would be re-elected as the Speaker in the next Parliament unless he declines the position.³⁵ These procedures are designed to ensure that, in the words of Erskine May, 'the chief characteristics attaching to the office of the Speaker in the House of Commons are authority and impartiality'.³⁶

CONCLUSION

The Lok Sabha has served Indian democracy well over nearly 7 decades. As the directly elected national level representative body, it has provided legitimacy to various social and economic changes that have been brought about through legislation and government policy. Along with the Rajya Sabha, it has helped the country negotiate various fault lines. A few examples, and by no means, an exhaustive list, illustrate this point. For example, conflicting sentiments regarding language have been dampened by forming linguistic states and extending the usage of English as an official language. Regional disparities in development have seen many policies such as transfers recommended by the Finance Commission being implemented through budgets. Concerns of changing

³² M. A. Ayyangar, Speaker from 1956 to 1962 (part of the First and Second Lok Sabha) was appointed Governor of Bihar between 1962 and 1967. Hukam Singh, Speaker from 1962 to 1967 (Third Lok Sabha), became Governor of Rajasthan from 1967 to 1972. Gurdial Singh Dhillon, Speaker from 1969 to 1975 (part of the Fourth and Fifth Lok Sabhas), resigned from his position to serve as the Minister for Shipping and Transport and was appointed Indian High Commissioner to Canada from 1980 to 1982, and as Agriculture Minister from 1986 to 1988. N. Sanjeeva Reddy, elected as Speaker in 1967, resigned in 1969 to contest the post for President of India (unsuccessfully), was elected Speaker again in 1977, and resigned within 4 months to be elected unopposed as the president. Balram Jakhar, Speaker from 1980 to 1989 (Seventh and Eighth Lok Sabha), was appointed Governor of Madhya Pradesh from 2004 to 2009. Shivraj Patil, Speaker from 1991 to 1996 (Tenth Lok Sabha), was Minister for Home Affairs from 2004 to 2008, and Governor of Punjab from 2010 to 2015.

³³ House of Commons 2010.

³⁴ House of Commons 2011. 'Procedure Committee—Fifth Report'. <https://publications.parliament.uk/pa/cm201012/cmselect/cmproced/1573/157302.htm>.

³⁵ Standing Order 1A states that the Speaker would be asked whether he would like to be chosen again as the Speaker, and if he agrees, the question would be put to the House. Though this implies that there would still be an election, the convention is that this vote is not negated, and the outgoing Speaker is re-elected.

³⁶ May 2011, 61.

representation were handled by freezing constituencies despite differential population growth. A wide range of social reform bills have been passed such as those related to Hindu personal laws. Affirmative action has been implemented for various social groups that have traditionally suffered discrimination.

At an even more fundamental level, the directly elected body, which in turn elects the government of the day, provides a constitutional path for various interest groups to advocate their positions in a peaceful manner. That is, a functional electoral democracy allows for social transformation without resorting to armed rebellion. It is notable that the Indian Constitution has lasted over 70 years, a record matched by few countries.³⁷ And during this period, India has held regular elections (albeit with a minor blip during the 1975–1977 emergency) and has ensured the peaceful transfer of power after every election. This testifies to the faith of the general population in the democratic system and the success of the Lok Sabha in maintaining this faith.

That said, there are some key aspects that need revisiting for the Lok Sabha to function as the representative body at the national level. These include the antidefection law that has hollowed out the notion of the representative, the need for recording and reporting all votes so that the representative can be held accountable by citizens, and tweaking processes to ensure that the Speaker stays nonpartisan and safeguards the right of members to make their interventions and hold the government accountable.

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³⁷ Jacobson 2016.

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CHAPTER 3

THE RAJYA SABHA

A 'Federal Chamber' or a Mere Upper House in the Indian Parliament?

SANDEEP SHASTRI

APPROACHING THE THEME

INDIA'S politics after Independence has seen several interesting twists and subtle turns. From a one-party-dominant system, the country has graduated to an authentic competitive multiparty system. While this clearly heralds the deepening of democracy, it brings in its wake a range of important and noteworthy changes in the cut and thrust of politics.¹ There are two linked issues that merit attention. First, the emerging debate on the working of the Indian democratic process, and second, the corollary changes in the contours of centre-state relations in particular, and the emerging patterns in the working of the federal institutions in general. This chapter focuses on the *Rajya Sabha*, which has the potential to effectively articulate the voice of the states at the federal level and provide a channel for the representation of diverse sociopolitical interests.

Since the 1990s, far-reaching social and political developments in India have influenced the nature and direction of federal politics. This 'new language of politics' was succinctly articulated in the Common Minimum Programme (CMP) of the 13-party United Front Government (which came to power in 1996), when it promised an 'alternative model of governance' based on 'federalism, decentralisation, accountability, equity and social justice'.²

¹ Shastri and Kailash 2017.

² CMP 1996.

The National Agenda for Governance (NAG)—formulated by the Bharatiya Janata Party (hereinafter called BJP) and its allies³—also underscored the changing contours of federalism and recognized the need for devolution of more financial and administrative powers and functions to the states (NAG 1998 and later NDA 1999). The CMP of the United Progressive Alliance (UPA), which came to power after the 2004 elections,⁴ underscored its commitment to cooperative federalism.

The BJP victory in the elections of 2014 heralded a new phase in both competitive party politics and the dynamics of centre-state relations. In its election manifesto, it held out a promise that ‘Team India shall not be limited to the Prime Minister led team sitting in Delhi, but will also include Chief Ministers and other functionaries as equal partners.’⁵ The implications of the above narration for the working of federal institutions like the Rajya Sabha is assessed in that document.

THE WORKING OF INDIAN FEDERALISM

For a meaningful analysis of the developments in Indian federalism over the last seven and a half decades, five clear phases can be delineated: (a) Independence to 1967; (b) 1967–1977; (c) 1977–89; (d) 1989 to 2014; and (e) 2014 to the present. Important developments in 4 crucial years permit the clear demarcation of these five phases. In 1967, for the first time, the Congress Party was defeated in several states of India. In 1977 the Congress faced its first defeat at the federal level, and the country saw the formation of a non-Congress government, and 1989 marked the end of one-party domination in Indian politics, and the ushering in of a phase of coalition and minority governments. The year 2014 marked the return of the trend of a single party securing a majority in the elections to the Lower House of Parliament after a quarter of a century.⁶ All four developments are linked to important developments triggered by electoral outcomes!

During the first phase, the Nehruvian phase, the political leadership underscored the inevitability of centralization of power to ensure ‘nation-building’. When ticklish state problems demanded immediate solutions, Nehru counselled the disputing parties to ‘keep in mind the larger view.’⁷ Further, this phase saw the thinning down of the line of distinction between party and government.⁸

The second phase (1967–1977) was witness to non-Congress governments⁹ being voted to power in the states, on the one hand, and Indira Gandhi attempting to

³ The BJP-led alliance, which formulated the NAG, came to power in 1998.

⁴ The UPA was re-elected in 2009.

⁵ BJP 2014.

⁶ Shastri and Kailash 2017.

⁷ For details see Shastri 1990, 59.

⁸ Shastri 1991, 15.

⁹ Till 1989; political parties other than the Congress Party were referred to as non-Congress parties, and this was reflective of the Congress Party occupying the centre stage in Indian politics.

increasingly assert her authority within the party, on the other. The constitutional provisions relating to centre-state relations were systematically misused.¹⁰

With the Janata Party coming to power (at the central level) in 1977, it was hoped that the aberrations in federal-state relations would be corrected. However, within months of assuming power, the new government established a record of sorts by resorting to the mass dismissal of Congress governments in the states, by invoking Article 356. The return of the Congress to power at the national level in 1980 saw continued tensions in centre-state relations and the rise in the demand for state autonomy.¹¹

The political developments of the 1990s have seen the democratic process 'seeping downwards';¹² new social and political alliances have been formed, and this has permanently altered the landscape of Indian politics. Regional parties (hereinafter referred to as state-based parties¹³) have been key players in the coalition governments formed at the centre since 1989.¹⁴ Most of the state-based parties in India are state-specific, and given the nature of their electoral support base, they have increasingly attempted to articulate state-rights issues at the federal level.

The last phase in the growth of Indian federalism and centre-state relations was inaugurated with the 2014 national elections. The BJP won a majority on its own but retained its pre-election coalition—the National Democratic Alliance (NDA). Yet this coalition saw the BJP being the visibly dominant party in the coalition. This phase also saw the ruling coalition led by the BJP, returning to power in 2019, securing a more robust majority. Another critical trend that this phase witnessed was the clear distinction that voters in India made between a national election and a state election. Distinctly different verdicts were witnessed in national and state-level elections held at close proximity.¹⁵

¹⁰ Politicization of the office of the governor, Misuse of Article 356, and further erosion of the fiscal autonomy of states.

¹¹ Commission on Centre State Relations 1988.

¹² The implication here is that social groups which had earlier been denied their rightful role in the political or electoral process were now demanding their legitimate share of the 'political cake'.

¹³ This term is being used as in the post-1990s period, the nature and the focus of the so-called regional parties have nothing specifically 'regional' about them. Their support base is limited to a particular state, and, therefore, the term 'state-based parties' is used.

¹⁴ Four of the six parties in the National Front Coalition government (1989–1990) were regional parties. In the 13-party United Front Governments (1996–1998), 11 were regional parties. In the NDA government today, all parties in the alliance, save the BJP, are powerful regional players. The United Progressive Alliance, which came to power in 2004, is made up of 12 parties, of which 10 are regional parties.

¹⁵ While in the 2014 and 2019 elections in the Lower House of Parliament, the BJP swept all the seats in Delhi. When the elections were held to the State Assembly within a year, the Aam Admi Party (AAP) was voted to power with an overwhelming majority. Similarly, while the NDA coalition won a majority of seats in the state of Bihar in the elections to the Lower House of Parliament in 2014, in the state assembly elections held in a year the ruling alliance in the state (which was opposed to the NDA) emerged victorious. Similarly, in the State Assembly elections held in December 2018, in Chattisgarh, Rajasthan, and Madhya Pradesh, the Congress came to power. Yet in the elections to the Lower House of Parliament held in the summer of 2019, the BJP won most of the seats from these states. A final example would be the state of Jharkhand, where the NDA led by the BJP won a majority of seats in the elections

The above developments are an authentic expression of the changing power equations within the Indian federal system. To what extent do important federal institutions represent the interests of the states? Do states have an effective platform at the federal level to articulate their problems and participate in decision-making on matters of critical national relevance? The Rajya Sabha assumes relevance when an attempt is made to answer the above questions.

THE RAJYA SABHA IN CONTEXT

The Upper House of the Indian Parliament—the Rajya Sabha (Council of States)—as the name indicates, was expected to offer a platform for those representing the interests of different states to place on the national agenda, issues of relevance and critical concern to the diverse regions of India.

It becomes important to take into account the debate in the Constituent Assembly on the provisions relating to the Rajya Sabha. While commending the Draft Constitution's provisions on the Upper House, Gopalaswamy Ayyangar categorically stated that the 'most that we expect ... the Second Chamber to do is perhaps ... *hold dignified debates* on important issues and to *delay legislation*'.¹⁶ During this stage of the debate, no mention was made either by Ayyangar or the others who participated about the status of the Rajya Sabha as a chamber that represented and articulated 'state rights'.¹⁷

In the Constituent Assembly, it was only during the debate on the composition and powers of the Rajya Sabha, that a few members made specific reference to fact that the House would represent the states of the Indian Union. It was in this context that K. T. Shah pleaded for incorporating the principle of equality among the states, while distributing the Rajya Sabha seats,¹⁸ and Lakshminarayana Sahu made out a case for a more just representation to the smaller states.¹⁹ Loknath Misra was among the more assertive and took the stand that as 'the Council of States is going to represent the States, it is but fair, to the States units that these units should be dealt with as units and every unit is equally represented. Otherwise, there is no sense in saying that the State shall be represented in the Council'.²⁰

to the Lower House of Parliament held in 2019, but the rival opposition alliance led by the JMM came to power in the State Assembly elections held later the same year. This trend was first seen in 1984–1985 in the state of Karnataka. The Congress under Rajiv Gandhi won 24 of the 28 seats in the Lower House of Parliament from the state in the December 1984 elections. Within 3 months, in March 1985, the rival Janata Party secured a majority in the State Assembly polls.

¹⁶ *Constituent Assembly Debates* [hereinafter referred to as CAD] vol. 4:876:28. July 1947. [Emphasis added].

¹⁷ See Austin 1962; Morris Jones 1959.

¹⁸ CAD vol. 7:1202.

¹⁹ CAD vol. 7:1209.

²⁰ CAD vol. 7:1208, 3 January 1949.

The suggestions made in the Constituent Assembly for a more equal representation of the states in the Upper House were not accepted, and this reflected the majority opinion in the Constitution-making body. Later in the debate in the Constituent Assembly on the special powers to be conferred on the Rajya Sabha to empower Parliament to make laws on subjects in the state list on the grounds of 'national importance', Ambedkar opined that as the 'Upper House represents the State', its 'resolution would be tantamount to the authority given by the States'.²¹ Save for these few specific references, the Constituent Assembly appeared to view the Rajya Sabha as a mere second chamber, with a peripheral role in the larger federal design.

It would be useful to examine the constitutional provisions and clearly outline the structure, role, and functions of the Rajya Sabha.

- The Constitution mandates that the Rajya Sabha shall consist of a maximum of 250 members.²² Of them, 238 are elected from the states and those union territories which have a Legislative Assembly,²³ and 12 are nominated by the President of India. The elected seats are not equally divided among all the states. The 238 elected seats are divided among the states and union territories on two principles population and the need to ensure that the smallest states or union territories are given at least one seat each. The members from a particular state are elected by the members of the Legislative Assembly.
- While the powers of the two Houses are assessed, the Council of Ministers is principally accountable to the Lower House. On matters of legislation, the powers of the two Houses are equal on nonfiscal matters whereas the Lower House (the *Lok Sabha*) is more powerful on money matters. A non-Money Bill can be introduced first in either House and has to be passed in identical form to become a law. If any one of the Houses does not consent to the bill, it lies deadlocked between the two Houses. There is an option to break the deadlock (which need not be mandatorily exercised). The president (on the advice of the Council of Ministers) can call a Joint Session of the two Houses to discuss a deadlocked non-Money Bill. In a Joint Session the Lower House is likely to have an upper hand as its strength is more than double that of the Upper House. In the case of a Money Bill, it can be first introduced only in the Lower House. If this House passes the legislation it is sent to the Upper House. On money matters, the Rajya Sabha can, at best, delay the bill by 14 days or force the Lok Sabha to consider it once again. In a later section of this chapter, a recent debate on what constitutes a Money Bill is discussed in detail.²⁴

²¹ CAD vol. 9:1118.

²² Article 80 (1).

²³ A few Union Territories (Pondicherry) and special category states (Delhi) have been permitted to have their Legislative Assemblies. They also have representation in the Rajya Sabha.

²⁴ The 2018 Supreme Court Judgment is discussed at length involving Parliament passing legislation as Money Bills.

- With regard to a Constitutional Amendment Bill, the Constitution is clear that it needs to be passed by the specific majority, as prescribed under Article 368 of the Constitution, by both Houses of Parliament. In a sense the Rajya Sabha enjoys the same powers as the Lok Sabha in this regard.
- The Rajya Sabha has three exclusive powers. The Rajya Sabha can declare by a resolution supported by not less than two-thirds of the members present and voting that it is necessary or expedient in the national interest that Parliament should make laws with respect to any matter enumerated in the state list specified in the resolution.²⁵ A similar resolution can be passed by the Rajya Sabha, for the creation of one or more all-India services.²⁶ The Rajya Sabha can approve special emergency proclamations initially or extend them subsequently while Lok Sabha is under dissolution.²⁷

As part of the analysis of the role and position of the Rajya Sabha, an assessment of the membership pattern of the Rajya Sabha (1952–2019) was undertaken.²⁸ The profile of the 2270 individuals, who have been Rajya Sabha members during this period, provides an indication of the role that political parties and states assigned to this House. Several factors have been kept in mind in this analysis. These include: (a) whether the members actually belonged to the state that they were elected from; (b) the number of terms an individual member has been elected for; (c) whether they had been members of the State Legislative Assembly or Council or active in state politics or office bearers of state units of the party prior to being elected to the Rajya Sabha; and (d) whether they were office bearers in the state unit of the party or was there proof of their involvement in state politics prior to their becoming Rajya Sabha members.²⁹ The analysis also attempts to examine whether there are any major variations in the above aspects when those elected before and after 2002 are taken into account.³⁰ The year 2002 is being chosen as a benchmark in view of two factors. The year 2002 saw the crystallization of the political trends ushered in by the 1989 elections of a competitive party system. Political parties by this point of time shared power in the centre and the states, and one rarely saw a party monopolizing authority at the two levels.

The study shows that 6% of the elected Rajya Sabha members (hereinafter referred to as members) do not belong to the state that they have been elected from. This percentage

²⁵ Article 249. The powers of the union and the state are divided into three list: Union List, State List, and Concurrent List.

²⁶ Article 312. All-India services are elite civil services.

²⁷ Under Articles 352, 356, and 360.

²⁸ The author had undertaken a study of the membership profile of the Rajya Sabha in the first half of the century (1952–2002) and the same was published (Shastri 2015). This study has now been extended to include the membership profile from 2002 to 2019, a further period of 17 years.

²⁹ While an attempt was made to secure details relating to all the members, it was not possible to secure the full information pertaining to 52 members. This is one of the limitations of this study.

³⁰ Those members who were elected prior to 1989 and continued to be members after 1989 (single term or multiple terms) are included in the post-1989 category.

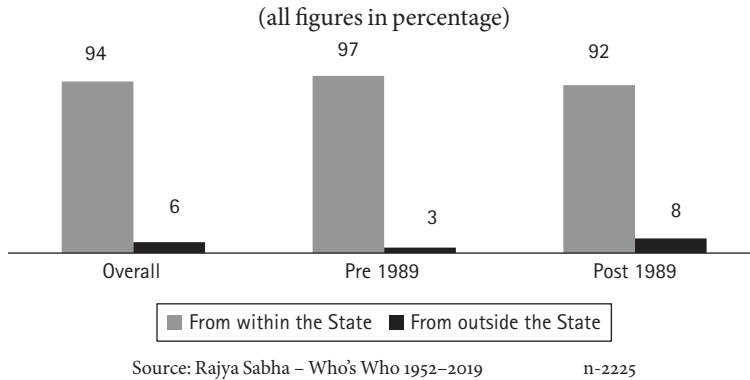


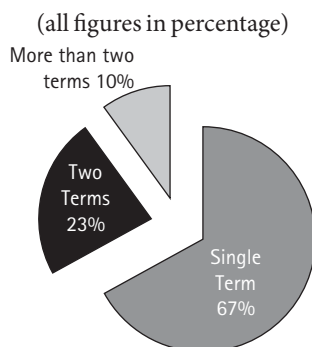
FIGURE 3.1 Elected Rajya Sabha Members – 1952 to 2019

increases to 8% if only those elected after 1989 are considered (Figure 3.1). Ever since a competitive party system was ushered in, national parties tended to use the ‘Rajya Sabha’ route to increasingly bring in senior members who were not able to get elected from their home state or were defeated in Lok Sabha elections. Secondly, since the Amendment of Section 3 of the Representation of People’s Act in 2003, it became possible for candidates to contest Rajya Sabha elections as long as they were registered electors anywhere in the country. Earlier, the provision stated that to contest Rajya Sabha elections, a candidate needed to be ‘ordinarily resident in the state’.

This amendment was upheld by the Supreme Court, in the *Kuldip Nayar versus Union of India* case. The Court held that there is absolutely no basis for the contention that a person who is an elector in the state concerned is more representative in character than one who is not. This amendment to the law and the Supreme Court judgement has in some ways diluted the requirement of members elected to the Rajya Sabha hailing from the state. This has clearly contributed to an increasing number of members from outside the state being elected to the House.

Elected Rajya Sabha Members—1952 to 2019

A few trends are witnessed with regard to the party affiliations of those elected to the Rajya Sabha from states other than their home state. Eight of every ten hail from the ‘national parties’. This is largely because these parties have used the route of Rajya Sabha members to accommodate senior leaders who hail from states where the party does not have a significant presence. Further, when a national party is in power at the centre, it often uses the Rajya Sabha membership to accommodate those who are inducted as ministers and need to be inducted as members of Parliament within 6 months. Secondly, one notices a trend in the last 2 decades of business leaders getting elected to the Upper House as Independents. Such leaders when seeking out the most ‘winnable’ seat, often focus on states outside their home states. Select state-based parties have also specifically



Source: Rajya Sabha – Who's Who 1952–2019

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FIGURE 3.2 Rajya Sabha Members – 1952 to 2019: Number of terms elected

focused on getting their interests represented in the Rajya Sabha through articulate spokespersons who do not necessarily hail from the state³¹ they are elected from.

More than two-thirds of the members have been elected for a single term (Figure 3.2).³² A little less than one-fourth of the members have enjoyed a 2-year term, and just 1 of every 10 members have been in the House for more than two terms. The relative lack of stability in tenure implies that political parties tend to frequently change their representative in the Upper House. This raises the question as to whether Rajya Sabha membership is often viewed by political parties and their leaders as an opportunity to distribute the benefits of power among those loyal to the party or leader.

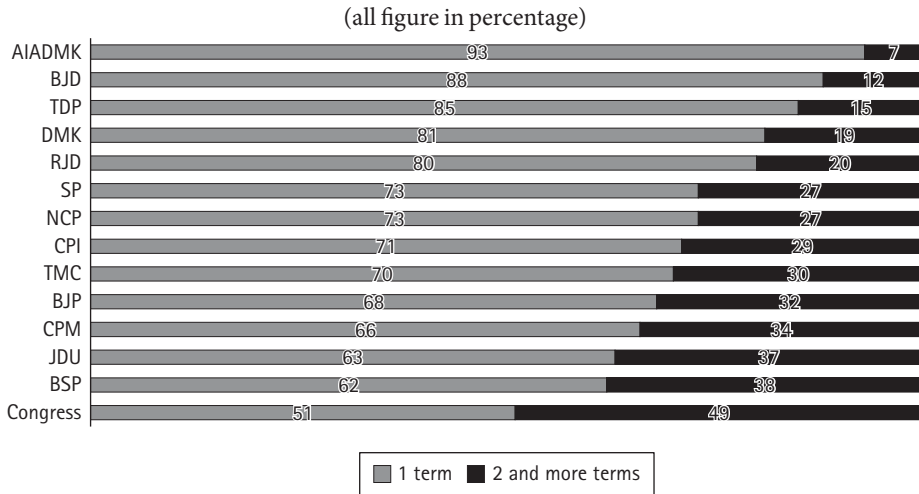
Rajya Sabha Members—1952 to 2019

When a party-wise analysis³³ of the number of terms members have served is undertaken, it is noticed that the lowest percentage of single-term member were in the Congress Party (Figure 3.3). This is essentially due to the fact that the Congress enjoyed a majority in most of the states of India for several years and could ensure that its members were re-elected. Interestingly, in the case of the BJP too, one-third of its members have had more than one term. This percentage has increased in the last 2 decades, as it emerged as a ruling party in several states as well as at the centre. The CPI and CPM have close to one-third of their members having more than one term. The two communist parties have used the Rajya Sabha route to get in senior party workers who do not contest direct elections to come through this route. Secondly, especially in the case of the CPM, there is a party norm that Rajya Sabha members will not be renominated beyond two terms.

³¹ The parties include the Trinamool Congress, Nationalist Congress Party (NCP), and the Samajwadi Party.

³² Those who served for less than one full term are included in the one-term category.

³³ For the purpose of analysis, only those parties on whose ticket a significant number of members have been elected have been taken into account.



Source: Rajya Sabha – Who's Who 1952–2019

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FIGURE 3.3 Elected Rajya Sabha Members – 1952 to 2019: Number of Terms – Party wise

It is also noticed that parties like the Bahujan Samaj Party (BSP), Samajwadi Party (SP), Janata Dal (United), Nationalist Congress party (NCP), and Trinamool Congress (TMC) have close to three of its ten members having served more than a single-term. These parties have sought to balance representations between seniors and first timers. There is a small group of members who are renominated either because of their proximity to the party leadership or because their presence in the House enhances the stature of the party.

In the case of many state-based parties, it is noticed that sitting Rajya Sabha MPs often are not given the party ticket or presented as new faces of the party. This is especially true in the case of the AIADMK, DMK, Biju Janata Dal (BJD), TDP, and RJD. In all these parties, more than eight of every ten members elected have been sent to the Upper House for a single term only. The state-based parties that have been analysed have had a presence in the states for over 2 decades, and, thus, an analysis of the pattern of membership is spread over more than three terms. It is clear that many state-based parties prefer to rotate the membership of its Rajya Sabha members as a reward for service to the party or loyalty to the party leadership.

Elected Rajya Sabha Members—1952 to 2019

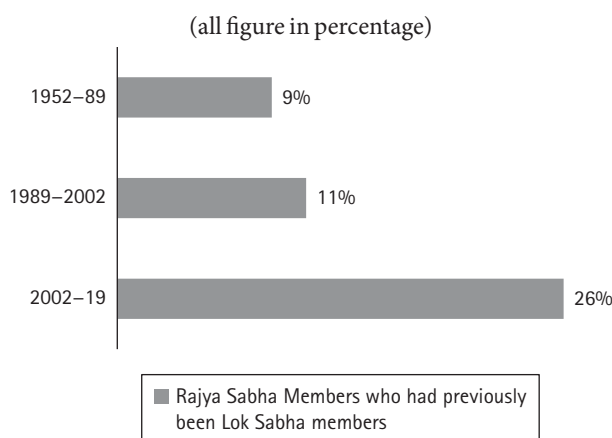
Did political parties offer Rajya Sabha membership to those who had earlier been elected to the Lok Sabha and were subsequently defeated at the polls or not given the party ticket. Till 1989 when the country was witness to a one-party dominant system, less one of every ten Rajya Sabha members had earlier been a member of the Lower House. These percentages marginally increased in the decade after a competitive party

system was ushered in. However, in the last 2 decades, this trend has been clearly visible. More than one-fourth of the members elected after 2002 were members of the Lok Sabha prior to their election.

Elected Rajya Sabha Members—1952 to 2019

An analysis of the party-wise break-up of Rajya Sabha members who had earlier been members of the Lower House reveals interesting patterns. A few parties seem to prioritize their former Lok Sabha members when nominating candidates for Rajya Sabha elections. In the case of the Congress Party, nearly four of every ten Rajya Sabha members elected during the period 2002–2019 were former Lok Sabha members. Many of its senior leaders having lost Lok Sabha elections were accommodated in the Upper House of Parliament by the party leadership (Figure 3.4). This trend is also seen in the case of parties like the Janata Dal (United), NCP, DMK, and the Samajwadi Party. In this period, one-fourth of the BJP members elected to the Rajya Sabha were former Lok Sabha members. Especially after becoming a ruling party, it has accommodated many of its senior leaders through the Rajya Sabha route. Political Parties like the Trinamool Congress, BJD, and AIADMK have preferred not to nominate too many former Lok Sabha members to the Rajya Sabha (Figure 3.5).

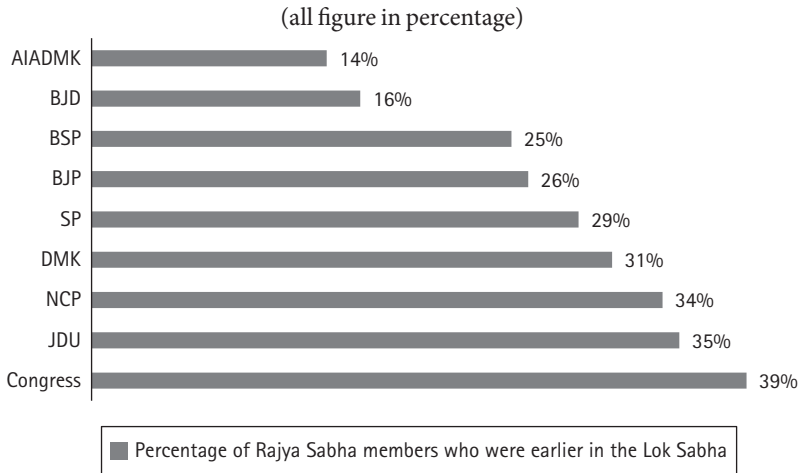
The fact that in the recent past there is a sharp increase in the percentage of Rajya Sabha members who had an earlier stint in the Lok Sabha is indicative of political parties using the Rajya Sabha route to politically accommodate or rehabilitate senior leaders of the party who were unable to win the direct election or preferred to opt for the indirect route. It raises questions on whether the House is thus seen by political parties and leaders as a ‘space for accommodating’ senior leaders who need to be in Parliament.



Source: Rajya Sabha – Who's Who 1952–2019

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FIGURE 3.4 Elected Rajya Sabha Members – 1952 to 2019: those who have been Lok Sabha members earlier



Source: Rajya Sabha – Who's Who 1952–2019 n-459

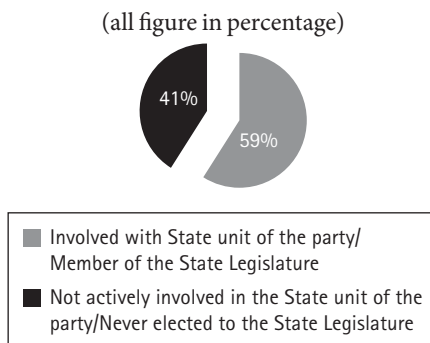
FIGURE 3.5 Elected Rajya Sabha Members – 2002 to 2019: Those who have been Lok Sabha members earlier – select parties

Elected Rajya Sabha Members—2002 to 2019

When the political background of the Rajya Sabha members was examined, it was found that a little over four of every ten members were either active in state politics as office bearers in the state unit of their party or elected as members of the State Legislature prior to being elected to the Upper House (Figure 3.6).

Elected Rajya Sabha Members—1952 to 2019

There are minor changes in the trends when one looks at individual political parties. This difference is evident if one were to separate the membership profile in the first 5 decades (1952–2002) and in the next 17 years (2002–2019). In the case of the Congress Party, the



Source: Rajya Sabha – Who's Who 1952–2019 n-2221

FIGURE 3.6 Elected Rajya Sabha Members – 1952 to 2019: Involved in party politics at state level/ Members of State legislature